



BENEFITS & PRIVILEGES SOLO PARENT-EMPLOYEES & THEIR CHILDREN

Policy No. 01-2005

PURPOSE: To establish a policy providing for benefits and privileges to solo employee/s and their children, appropriating funds therefore and other purposes.

INTRODUCTION:

Republic Act No. 8972 otherwise known as "Solo Parents Welfare Act of 2000" Requires employers either in private or public sectors to grant benefits and privileges to solo parents employee/s who fall under any of the following categories:

1. A woman who gives birth as a result of rape or crime against chastity, even without a final conviction of the offender provided that the mother keeps and raises the child;
2. Parent left solo or alone with the responsibility of parenthood due to death of spouse;
3. Parent left solo or alone with the responsibility of parenthood while the spouse is detained, or is serving sentence for a criminal conviction for at least one (1) year;
4. Parent left solo or alone with the responsibility of parenthood due to physical and or mental incapacity of spouse as certified by a public medical practitioner.
5. Parent left solo or alone with the responsibility of parenthood due to legal separation or de facto separation from spouse for at least one (1) year. Provided, that he/she is entrusted with the custody of the children;
6. Parent left solo or alone with the responsibility of parenthood due to declaration of nullity or annulment of marriage as decreed by a court or by a church. Provided that he/she is entrusted with the custody of the children;
7. Parent left solo or alone with the responsibility of parenthood due to abandonment of spouse for at least one (1) year;
8. Unmarried mother/father who has preferred to keep and rear his/her child/children instead of having others care for them or give them up to a welfare institution;
9. Any other person who solely provides parental care and support to a child/children provided he/she is duly licensed as a foster parent by the DSWD or duly appointed legal guardian by the court;
10. Any family member who assumes the responsibility of head of family as a result of the death, abandonment, disappearance or prolonged absence of the parents or solo parent. Provided, that such abandonment, disappearance or absence lasts for at least one (1) year.

POLICIES:

1. The employer shall provide for a flexible work schedule for a solo parent-employee/s



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provided that the same shall not affect individual and company productivity. Provided further, that the employer may request exemption from this requirement from the DOLE on certain meritorious grounds.

2. Parental leave of not more than seven (7) days every year shall be granted to any solo parent-employee/s provided that he/she has rendered at least one (1) year of service whether continuous or broken at the time of the effectivity of this policy and has notified his/her employer of the availment thereof within a reasonable time period. The seven-day parental leave shall be non-cumulative.
3. In the event that the parental leave is not availed of, said leave shall not be convertible to cash unless specifically agreed upon previously.
4. Emergency or contingency leave granted under the cooperative's policy or under the collective bargaining agreement shall not be credited as compliance with the parental leave provided for under this policy.
5. Educational benefits like scholarship programs of basic, tertiary and technical/skills education shall be granted to qualified solo parent employee and his/her children.

IMPLEMENTATION:

The General Manager shall be responsible in the implementation of this policy.

EFFECTIVITY:

This Policy shall take effect upon the approval of the Board of Directors.

NORMA T. PARADO
Secretary

ZALDY B. GUILENG
President

Approved per Board Resolution No. 115-2005 dated October 7, 2005.

**AN ACT PROVIDING FOR BENEFITS AND PRIVILEGES TO SOLO PARENTS AND THEIR CHILDREN,
APPROPRIATING FUNDS THEREFOR AND FOR OTHER PURPOSES**

Be it enacted by the Senate and House of Representatives of the Philippines Congress assembled:

Section 1. Title. - This Act shall be known as the "Solo Parents' Welfare Act of 2000."

Section 2. Declaration of Policy. - It is the policy of the State to promote the family as the foundation of the nation, strengthen its solidarity and ensure its total development. Towards this end, it shall develop a comprehensive program of services for solo parents and their children to be carried out by the Department of Social Welfare and Development (DSWD), the Department of Health (DOH), the Department of Education, Culture and Sports (DECS), the Department of the Interior and Local Government (DILG), the Commission on Higher Education (CHED), the Technical Education and Skills Development Authority (TESDA), the National Housing Authority (NHA), the Department of Labor and Employment (DOLE) and other related government and nongovernment agencies.

Section 3. Definition of Terms. - Whenever used in this Act, the following terms shall mean as follows:

(a) "Solo parent" - any individual who falls under any of the following categories:

- (1) A woman who gives birth as a result of rape and other crimes against chastity even without a final conviction of the offender: *Provided*, That the mother keeps and raises the child;
- (2) Parent left solo or alone with the responsibility of parenthood due to death of spouse;
- (3) Parent left solo or alone with the responsibility of parenthood while the spouse is detained or is serving sentence for a criminal conviction for at least one (1) year;
- (4) Parent left solo or alone with the responsibility of parenthood due to physical and/or mental incapacity of spouse as certified by a public medical practitioner;
- (5) Parent left solo or alone with the responsibility of parenthood due to legal separation or *de facto* separation from spouse for at least one (1) year, as long as he/she is entrusted with the custody of the children;
- (6) Parent left solo or alone with the responsibility of parenthood due to declaration of nullity or annulment of marriage as decreed by a court or by a church as long as he/she is entrusted with the custody of the children;
- (7) Parent left solo or alone with the responsibility of parenthood due to abandonment of spouse for at least one (1) year;
- (8) Unmarried mother/father who has preferred to keep and rear her/his child/children instead of having others care for them or give them up to a welfare institution;
- (9) Any other person who solely provides parental care and support to a child or children;
- (10) Any family member who assumes the responsibility of head of family as a result of the death, abandonment, disappearance or prolonged absence of the parents or solo parent.

A change in the status or circumstance of the parent claiming benefits under this Act, such that he/she is no longer left alone with the responsibility of parenthood, shall terminate his/her eligibility for these benefits.

(b) "Children" - refer to those living with and dependent upon the solo parent for support who are unmarried, unemployed and not more than eighteen (18) years of age, or even over eighteen (18) years but are incapable of self-support because of mental and/or physical defect/disability.

(c) "Parental responsibility" - with respect to their minor children shall refer to the rights and duties of the parents as defined in Article 220 of Executive Order No. 209, as amended, otherwise known as the "Family

Code of the Philippines."

(d) "Parental leave" - shall mean leave benefits granted to a solo parent to enable him/her to perform parental duties and responsibilities where physical presence is required.

(e) "Flexible work schedule" - is the right granted to a solo parent employee to vary his/her arrival and departure time without affecting the core work hours as defined by the employer.

Section 4. Criteria for Support. - Any solo parent whose income in the place of domicile falls below the poverty threshold as set by the National Economic and Development Authority (NEDA) and subject to the assessment of the DSWD worker in the area shall be eligible for assistance: *Provided, however,* That any solo parent whose income is above the poverty threshold shall enjoy the benefits mentioned in Sections 6, 7 and 8 of this Act.

Section 5. Comprehensive Package of Social Development and Welfare Services. - A comprehensive package of social development and welfare services for solo parents and their families will be developed by the DSWD, DOH, DECS, CHED, TESDA, DOLE, NHA and DILG, in coordination with local government units and a nongovernmental organization with proven track record in providing services for solo parents.

The DSWD shall coordinate with concerned agencies the implementation of the comprehensive package of social development and welfare services for solo parents and their families. The package will initially include:

(a) Livelihood development services which include trainings on livelihood skills, basic business management, value orientation and the provision of seed capital or job placement.

(b) Counseling services which include individual, peer group or family counseling. This will focus on the resolution of personal relationship and role conflicts.

(c) Parent effectiveness services which include the provision and expansion of knowledge and skills of the solo parent on early childhood development, behavior management, health care, rights and duties of parents and children.

(d) Critical incidence stress debriefing which includes preventive stress management strategy designed to assist solo parents in coping with crisis situations and cases of abuse.

(e) Special projects for individuals in need of protection which include temporary shelter, counseling, legal assistance, medical care, self-concept or ego-building, crisis management and spiritual enrichment.

Section 6. Flexible Work Schedule. - The employer shall provide for a flexible working schedule for solo parents: *Provided,* That the same shall not affect individual and company productivity: *Provided, further,* That any employer may request exemption from the above requirements from the DOLE on certain meritorious grounds.

Section 7. Work Discrimination. - No employer shall discriminate against any solo parent employee with respect to terms and conditions of employment on account of his/her status.

Section 8. Parental Leave. - In addition to leave privileges under existing laws, parental leave of not more than seven (7) working days every year shall be granted to any solo parent employee who has rendered service of at least one (1) year.

Section 9. Educational Benefits. - The DECS, CHED and TESDA shall provide the following benefits and privileges:

(1) Scholarship programs for qualified solo parents and their children in institutions of basic, tertiary and technical/skills education; and

(2) Nonformal education programs appropriate for solo parents and their children.

The DECS, CHED and TESDA shall promulgate rules and regulations for the proper implementation of this program.

Section 10. Housing Benefits. - Solo parents shall be given allocation in housing projects and shall be provided with liberal terms of payment on said government low-cost housing projects in accordance with housing law provisions prioritizing applicants below the poverty line as declared by the NEDA.

Section 11. Medical Assistance. - The DOH shall develop a comprehensive health care program for solo parents and their children. The program shall be implemented by the DOH through their retained hospitals and medical centers and the local government units (LGUs) through their provincial/district/city/municipal hospitals and rural health units (RHUs).

Section 12. Additional Powers and Functions of the DSWD. — The DSWD shall perform the following additional powers and functions relative to the welfare of solo parents and their families:

- (a) Conduct research necessary to: (1) develop a new body of knowledge on solo parents; (2) define executive and legislative measures needed to promote and protect the interest of solo parents and their children; and (3) assess the effectiveness of programs designed for disadvantaged solo parents and their children;
- (b) Coordinate the activities of various governmental and nongovernmental organizations engaged in promoting and protecting the interests of solo parents and their children; and
- (c) Monitor the implementation of the provisions of this Act and suggest mechanisms by which such provisions are effectively implemented.

Section 13. Implementing Rules and Regulations. - An interagency committee headed by the DSWD, in coordination with the DOH, DECS, CHED, TESDA, DOLE, NHA, and DILG is hereby established which shall formulate, within ninety (90) days upon the effectivity of this Act, the implementing rules and regulations in consultation with the local government units, nongovernment organizations and people's organizations.

Section 14. Appropriations. - The amount necessary to carry out the provisions of this Act shall be included in the budget of concerned government agencies in the General Appropriations Act of the year following its enactment into law and thereafter. *lawphil.net*

Section 15. Repealing Clause. - All laws, decrees, executive orders, administrative orders or parts thereof inconsistent with the provisions of this Act are hereby repealed, amended or modified accordingly.

Section 16. Separability Clause. - If any provision of this Act is held invalid or unconstitutional, other provisions not affected thereby shall continue to be in full force and effect.

Section 17. Effectivity Clause. - This Act shall take effect fifteen (15) days following its complete publication in the *Official Gazette* or in at least two (2) newspaper of general circulation.

Approved.

(Sgd.)

JOSEPH EJERCITO ESTRADA
President of the Philippines

The Lawphil Project - Arellano Law Foundation



PATERNITY LEAVE

Policy No. 02 - 2005

PURPOSE:

To establish a policy in the granting of paternity leave to all married male employees of the cooperative.

INTRODUCTION:

Republic Act no. 8187 requires employers either in the private or public sectors to grant every married male employee seven (7) days paternity leave with full pay for the first four (4) deliveries by his lawful wife.

POLICIES:

1. Paternity leave shall be granted to the qualified employee after delivery of his lawful wife, without prejudice to the employer allowing an employee to avail of the benefit before or during the delivery, provided, that the total number of days shall not exceed seven (7) days for each delivery.
2. The employee is entitled to full pay consisting of basic salary for the seven days during which he is allowed not to report for work, provided that his pay shall not be less than the mandated minimum wage.
3. Where a male employee is already enjoying the paternity leave benefit by reason of contract, cooperative policy or collective bargaining agreement, the following rules shall apply:
 - a) If the existing paternity leave benefit is greater than what is provided, the greater benefit shall prevail;
 - b) If the existing paternity leave benefit is lesser than what is provided, such existing benefit shall be adjusted to the extent of difference.
 - c) Where a contract, cooperative policy or collective bargaining agreement provides for an emergency or contingency leave without specific provisions on paternity leave, the paternity leave shall apply in full.

IMPLEMENTATION:

The General Manager shall be responsible in implementing this Policy.

EFFECTIVITY:

This Policy shall take effect upon the approval of the Board of Directors.

NORMA T. PARADO
Secretary

ZALDY B. GUILENG
President

Approved per Board Resolution No. 115-2005 dated October 7, 2005.

POLICY No. 02-2005

PURPOSE:

To establish a policy for the granting of paternity leave to all married male employees of the cooperative.

INTRODUCTION:

Republic Act No. 8187 requires employers either in the private and public sectors to grant every married male employee seven (7) days paternity leave benefits with full pay for the first four (4) deliveries by his lawful spouse.

POLICIES:

1. Paternity leave benefits shall be granted to the qualified employee after delivery of his lawful wife, without prior prejudice to the employer allowing an employee to avail of the benefit before or during the delivery provided, that the total number of days shall not exceed seven (7) days for each delivery.
2. The employee is entitled to his full pay consisting of basic salary for the seven (7) days during which he is allowed not to report for work, provided that his pay shall not be less than the mandated minimum wage.
3. Where a male employee is already enjoying the paternity benefits by reason of contract, cooperative policy or collective bargaining agreement, the following rules shall apply:
 - a) If the existing paternity leave benefit is greater than what is provided, the greater benefit shall prevail.
 - b) If the existing paternity leave benefit is lesser than what is provided, such existing benefit shall be adjusted to the extent of difference.
 - c) Where a contract, cooperative policy or collective bargaining agreement provides for an emergency or contingency leave without specific provision on paternity leave, the paternity leave shall apply in full.

IMPLEMENTATION:

The General Manager shall be responsible in the implementation of this policy.

EFFECTIVITY:

This policy shall take effect upon the approval of the Board of Directors.


NORMA T. PARADO
Secretary of the Board


ZALDY B. GUILENG
Board President

Approved per Board Resolution No. 115-2005 dated October 7, 2005.



BENGUET ELECTRIC COOPERATIVE, INC.

Office of the Board of Directors
ALAPANG, LA TRINIDAD, BENGUET

**EXCERPTS FROM THE 2nd REGULAR MEETING
OF THE BENECO BOARD OF DIRECTORS
22 SEPTEMBER 2015, DPS PUNCTUALITY HALL,
DPS COMPOUND, BAGUIO CITY**

PRESENT:

PETER B. BUSAING, President
JEFFRED S. ACOP, Vice President
JOSEPHINE B. TULING, Secretary
ROCKY M. ALIPING, Treasurer
BRUNO M. CANUTO, Auditor
ESTEBAN A. SOMNGI, PRO
JAMES ACLOPEN, Member
LUKE GOMEYAC, Member
MIKE MASPII, Member
JONATHAN OBAR, Member
GERARDO P. VERZOSA, General Manager, Ex-Officio member

ABSENT:

NONE

RESOLUTION NO. 114-2015

APPROVING THE IMPLEMENTING RULES & REGULATIONS (IRR) OF POLICY NO. 02-2005 (LONGEVITY PAY) AND LENGTH OF SERVICE, AMENDMENTS TO POLICY NO. 2000-03 (MOTORCYCLE PLAN), POLICY NO. 02-2011 (RICE SUBSIDY), POLICY NO. 09-2011 (ANNIVERSARY/FOUNDATION DAY INCENTIVE) AND POLICY NO. 3-17 (OVERTIME PAY, PREMIUM PAY, NIGHT SHIFT DIFFERENTIAL AND HOLIDAY PAY).

Whereas, there is a need to provide an Implementing Rules and Regulations for the initial implementation of Policy No. 02-2005 (LONGEVITY PAY) and the computation of LENGTH OF SERVICE of employees for purposes of Service Awards and Computation of Retirement, Gratuity and Disability benefits;

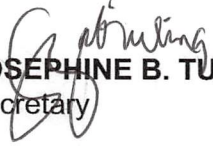
Whereas, there is also a necessity to amend and update some provisions on Policy No. 2000-03 (MOTORCYCLE PLAN), on Policy No. 02-2011 (RICE SUBSIDY), Policy No. 09-2011 (ANNIVERSARY/FOUNDATION DAY INCENTIVE) and on Policy No. 3-17 (OVERTIME PAY, PREMIUM PAY, NIGHT SHIFT DIFFERENTIAL AND HOLIDAY PAY) for better implementation;

NOW THEREFORE, ON MOTION OF DIR. JOSEPHINE B. TULING DULY SECONDED BY ALL, be it resolved as it is hereby resolved, this body hereby approves the **IMPLEMENTING RULES & REGULATIONS (IRR) OF POLICY NO. 02-2005 (LONGEVITY PAY) AND LENGTH OF SERVICE, AMENDMENTS TO POLICY NO. 2000-03 (MOTORCYCLE PLAN), POLICY NO. 02-2011 (RICE SUBSIDY), POLICY NO. 09-2011 (ANNIVERSARY/FOUNDATION DAY INCENTIVE) AND POLICY NO. 3-17 (OVERTIME PAY, PREMIUM PAY, NIGHT SHIFT DIFFERENTIAL AND HOLIDAY PAY).**

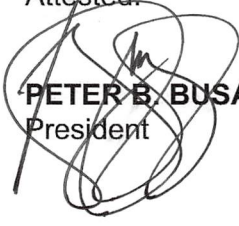
UNANIMOUSLY APPROVED.

I HEREBY CERTIFY to the correctness of the foregoing resolution.

Certified True and Correct:


JOSEPHINE B. TULING
Secretary

Attested:

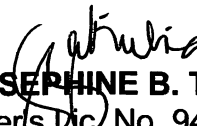

PETER B. BUSAING
President

SECRETARY'S CERTIFICATE

I, **JOSEPHINE B. TULING**, of legal age, single, Filipino citizen and with office address at Alapang, La Trinidad, Benguet after having been duly sworn with accordance the law.

1. I am the secretary to the board of Directors of the Benguet Electric Cooperative, Inc. (BENECO), a corporation duly organized and existing under Philippine laws with principal office and place of business at Alapang, La Trinidad, Benguet.
2. As the board secretary, I am the custodian of the records of the Board of Directors of BENECO including the minutes of the meetings of the said Board of Directors. At the 2nd regular meeting of the Board of Directors duly held on September 22, 2015 at DPS Punctuality Hall, DPS Compound Baguio City, of which meeting, a quorum was obtained and a resolution **"APPROVING THE IMPLEMENTING RULES & REGULATIONS (IRR) OF POLICY NO. 02-2005 (LONGEVITY PAY) AND LENGTH OF SERVICE, AMENDMENTS TO POLICY NO. 2000-03 (MOTORCYCLE PLAN), POLICY NO. 02-2011 (RICE SUBSIDY), POLICY NO. 09-2011 (ANNIVERSARY/FOUNDATION DAY INCENTIVE) AND POLICY NO. 3-17 (OVERTIME PAY, PREMIUM PAY, NIGHT SHIFT DIFFERENTIAL AND HOLIDAY PAY)"** was duly approved.

IN WITNESS HEREOF, I have hereunto set my hand this 22nd of September 2015 at Baguio City.


JOSEPHINE B. TULING
Driver's Lic No. 94-048967
Issued by LTO until July 11, 2015

SUBSCRIBED AND SWORN to before me this 2nd day of October 2015 at Baguio City.

Doc. No. 101 ;
Page No. 35 ;
Book No. X ;
Series of 2015.


JANEENE T. DEPAY SOLINGAN
Notary Public
Until December 31, 2016
PTR. No. 2046812; 01/13/15; Baguio City
Lifetime IBP No. 05860; 05/08/06; Baguio Benguet
Roll No. 52514; 05/11/06
N.A. No. 55-NC-15-R
TIN: 911-403-735